

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

IWG INTERNATIONAL WOOD GROUP OF SC AND
HONEST TRADING INTERNATIONAL LLC, *Complainants*

v.

DB SCHENKER USA, INC., *Respondent*.

DOCKET NO. 25-16

Served: December 2, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

SCHEDULING ORDER

On December 1, 2025, the parties filed a Joint Status Report and Proposed Scheduling Order.

The proposed schedule appears to indicate that discovery has only very recently started. For example, the proposed schedule indicates that initial disclosures are to occur in December 2025, and that initial written discovery was to be served on December 1, 2025. The parties were instructed to proceed with their cases to the extent possible, including conducting discovery and serving opposing parties with filings – including motions, briefs, and responses to requests for additional information – by the established deadlines. (*See Notice Regarding Deadlines*, sent October 1, 2025). This would have included complying with the requirement in the Initial Order that initial disclosures occur within 7 days of the answer being filed. This delay will be taken into consideration should the parties request additional time. Should the parties, or only one party, need additional time for discovery, the moving party or parties will need to show substantial need and/or unreasonable delay caused by the opposing party.

Nevertheless, the proposed discovery schedule indicates that the parties plan to complete all discovery by February 19, 2026, which is within five months of service of Respondent's answer on September 22, 2025. Therefore, as indicated below, I will adopt this proposed schedule, though I note as follows: 1) I modified the time for making initial disclosures; 2) I clarified that briefs are to be accompanied by a proposed finding of fact and/or response to the opposing party's proposed finding of fact, as well as an appendix of exhibits; 3) the parties are to refer to the Initial Order and Commission Rule 5 regarding the filing of any documents that may contain confidential matter; and 4) the parties must issue all discovery requests and schedule depositions in time to complete fact discovery by February 19, 2026. In addition, I note the caveat regarding extension requests that I discussed above.

To make the discovery process more efficient, the parties are encouraged to agree to limitations on discovery and stipulations of facts. The parties are also encouraged to review the

Initial Order for instructions related to confidential information. For example, parties may not mark entire depositions as confidential, so they should ask questions that may require confidential responses together, typically at the end of the deposition.

The parties are hereby **ORDERED** to follow this schedule:

As soon as practicable, but no later than December 5, 2025	Initial Disclosures
December 1, 2025	Initial Written Discovery Served
December 19, 2025	Complainants' Expert Reports
January 19, 2026	Respondent's Expert Reports
February 19, 2026	Close of all discovery
March 19, 2026	Complainant's brief, proposed findings of fact, and appendix.
May 1, 2026	Respondent's opposition brief, response to proposed findings of fact, proposed findings of fact, and appendix
May 15, 2026	Complainant's reply brief and responses to proposed findings of fact

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” (*Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985))). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” (*Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983)). The authority of courts to control their dockets is well settled. (*Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998)).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response.

Parties must follow the instructions in the Initial Order, including the requirements for submitting confidential information. Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.

Richard C.

Ambrow Jr -S

Richard Ambrow
Administrative Law Judge

Digitally signed by Richard C.
Ambrow Jr -S
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